STUDENT DISCIPLINE, SUSPENSION, AND DUE PROCESS

Discipline: Good discipline is vital to the educational program. Discipline should be fair, dignified, and administered with an even temper. Discipline may include, but is not limited to, conferences with parents or guardians, in-school detention, revocation of privileges, and suspension.

In administering discipline, consideration will be given to alternative methods of punishment to ensure that the most effective discipline is administered in each case. In all disciplinary action, teachers and administrators will be mindful of the fact that they are dealing with individual personalities. Administrators may consider consultation with parents to determine the most effective disciplinary measure. The Board will rely upon the judgment and discretion of the administrator to determine the appropriate remedial or corrective action in each instance.

Alternative In-School Placements: Before a decision to suspend is imposed, alternative in-school placements shall be considered. Alternative in-school placements, alternative program placement, Alternative Placement Educational Program (APEP), Detention, Intervention Program, Student Alternative Center (SAC), and similar disciplinary options or other correctional measures, such as those identified below, are not "suspensions" and do not require or involve the due process procedures established by this policy.

While in-school placements shall not be considered as an out-of-school suspension, they shall be treated as disciplinary or correctional actions which may be used as an alternative to out-of-school suspension or in conjunction with an out-of-school suspension.

Definitions:

"Suspension" or "out-of-school suspension" is the removal of a student from the daily school environment for a period not to exceed one calendar year for offenses involving firearms and the remainder of the current semester and the succeeding semester for all other offenses. A principal may suspend a student when the student's behavior is in violation of the District's Student Code of Conduct, Administrative Regulations, or directives received from school authorities. Suspensions should have a definite commencement and ending date; indefinite out-of-school suspensions are not permitted. Although suspensions until the student performs some remedial act are not permitted, a student may be advised a suspension of definite length will terminate earlier if the student performs a prescribed remedial act or acts.

A "long-term suspension" is one which exceeds ten (10) school days.

A "short-term suspension" is ten (10) or fewer school days.

"Parent" refers to a student's parent, legal guardian, or the person having legal custody of the student.

Corporal Punishment: District prohibits the use of corporal punishment as a means of discipline, and any employee who violates this policy will be subject to discipline up to and including termination.

Special Education Suspension/Discipline: Student discipline, suspension, and due process for special education students, as defined by the Individuals with Disabilities Education Act ("IDEA") and/or Section 504 of the Rehabilitation Act of 1973, shall be administered in accordance with "The Policies and Procedures Manual for Special Education in Oklahoma" published by the Oklahoma State Department of Education. Federal law or regulation and Oklahoma law or regulation pertaining to students with disabilities shall take precedence over District policy and regulations in all matters that are specifically addressed by the federal and state laws or regulations. Where Federal and Oklahoma law or regulation permit, are silent, or do not directly address issues dealing with students with disabilities, District policy and regulations will be followed.

Pre-Suspension Informal Conference with Student

(a) When a student is believed to have committed an offense for which suspension may be imposed, the principal or designee shall conduct an informal conference with the student.

(b) The principal or designee shall inform the student of the policy, rule or regulation the student is charged with or suspected of having violated, the evidence supporting the charges, and the conduct reported to be in violation of the policy, rule, or regulation.

(c) The principal or designee will give the student the opportunity to respond to the charges, the evidence presented by the principal or designee in support of the charges and allow the student the opportunity to provide his/her own information and admit or deny the charges.

(d) If the principal or designee concludes the student committed the offense and suspension is appropriate, the principal or designee shall inform the student of the length of the suspension. In deciding whether to impose a suspension and determining the length of a suspension, a principal or designee may consider the following: seriousness of the offense, the student's attitude, the student's disciplinary history, those adversely affected by the misconduct, those potentially adversely affected by the misconduct, and the number of behavioral offenses associated with the misconduct and current suspension decision.

(e) The principal or designee shall inform the parent of the suspension and that alternative in-school placement or other available disciplinary options were considered. Elementary and middle school students shall not be dismissed on

suspension before the end of the school day without advance notice to the parent. High school students shall not be dismissed on suspension before the end of the school day without reasonable efforts by the school administration to contact the parent except in cases where the student poses an immediate threat to the safety and welfare of the student, other students, staff and/or property.

(f) Records and Reports: The principal or designee will record each pre-suspension conference, including the date of the conference, the names of the persons present, and the alternative in-school disciplinary alternatives that were considered. The principal or designee shall maintain records related to the Education Plan and the student and/or parent's compliance or non-compliance with the Plan.

(g) Notification to Parents: The principal or designee will inform the parent or guardian of the suspension as soon as possible after a suspension is imposed, explain the basis for the suspension, inform the parent of the opportunity to have the suspension reviewed by appeal, and provide the parent the time deadlines for submitting an appeal request. The notice required in this section shall be completed with the parent signing and dating the notice or in the form of a letter sent by certified mail, return receipt requested.

Immediate Out-of-School Suspension without a Pre-Suspension Conference: A student may be suspended without a pre-suspension conference only where a student's conduct reasonably indicates the continued presence of the student poses an immediate danger to the health or safety of the students, employees, or District property, or a continued substantial disruption of the educational process. In this event, an out-of-school suspension conference with the student and the parent or guardian will be scheduled as soon as possible after the student has been removed from school.

Education Plan

Suspensions of Five (5) School Days or Less: Suspensions of five (5) school days or less shall include the following Suspension Education Plan ("Plan"):

(a) A student shall be eligible to receive grades for full credit on all work, assignments, and tests during the period of the out-of-school suspension for five (5) school days or less.

(b) The student is solely responsible for obtaining and making up the missed work, assignments, and/or tests missed while on suspension from and with the student's teachers upon return to school from suspension.

(c) The student will have one day for each day of suspension to make up the work, assignments, and/or tests missed during the suspension. The failure of the

student to meet these time requirements will result in a grade of zero (0) or "F" and no credit for work, assignments, and/or tests not made up according to the time requirements.

Suspensions in Excess of Five (5) School Days: Suspensions in excess of five (5) school days shall include a Suspension Education Plan ("Plan") which shall be prepared by the principal or designee with the assistance of other school employees as warranted. A Suspension Education Plan as described in this policy will be formed for suspensions in excess of five (5) school days except for those specifically involving a firearm or possession of a controlled dangerous substance(s) while selling, conspiring to sell, distributing, being in the chain of sale or distribution, or with the intent of furnishing illegal or illicit drugs or other mood-altering substances.

The Plan shall provide for the core units in which the student is enrolled. Core units are the minimum English, mathematics, Science, Social Studies and Art units required by the Oklahoma State Department of Education for grade completion in grades kindergarten through grade eight and for high school graduation in grades nine through twelve.

The Plan shall be provided to the student and parent. The parent shall be responsible for providing the student with a supervised, structured environment in which to comply with the Plan and monitoring educational progress until the student is readmitted. The Plan shall set out the procedure for education and set what academic credit will be earned for work satisfactorily completed.

Attendance at School Pending Appeal Hearing: Pending a properly and timely submitted appeal, the student may attend school under whatever "in-school" restrictions the principal deems proper. Provided, the student shall remain out of school and/or not attend school pending an appeal if the principal determines the misconduct of the student reasonably indicates continued attendance would pose a danger to students, employees, or property, or would substantially interfere with school operations.

Student Privileges While Suspended: Participation in all the extracurricular activities is a privilege and not a right. Accordingly, when a student is suspended the student immediately, notwithstanding the filing of an appeal, forfeits the privilege of participating in all extracurricular activities. In addition, when a principal or designee determines to impose alternative measures, in-school disciplinary actions or other correctional measures against a student, the student will not be permitted to participate in any extracurricular activities during the term of the discipline unless, in the sole judgment of the principal, such participation is appropriate given the nature of the offense committed by the student.

"Extracurricular activities" include, but are not limited to, all school-sponsored games/events, school-sponsored teams, clubs, organizations, ceremonies, student government, band, athletics and all other school sponsored activities and organizations. The prohibition includes the restriction from participating in and attending extracurricular and school activities on and/or off school property. Commencement/ graduation is an

extracurricular activity.

Appeal of Short-Term Suspensions:

A student suspended for a period of ten (10) or fewer school days, following an informal pre-suspension conference with the principal or designee, may appeal the suspension as follows:

(a) An appeal to the Site Committee must be requested in writing to and received by the school principal or designee within two (2) calendar days after the principal's or designee's suspension decision is received by the student or parent and must specify what part of the out-of-school suspension decision is being appealed. The parent/student may appeal one or both of the following:

1) The finding of guilt of the charge(s) by the principal or designee for which the student was suspended; and/or

2) The reasonableness and length of the suspension.

(b) The suspension decision will become final and nonappealable if a request for appeal is not timely submitted.

(c) Upon receipt of the request for an appeal, the Principal shall confirm the suspension falls within the category of suspensions to which an appeal to the Site Committee is authorized. If the Principal or designee determines the period of suspension is greater than (10) school days, or if for any reason, the short-term suspension is extended beyond ten (10) school days prior to the committee hearing, the procedures applicable to long-term suspensions must be followed and the student must be given the opportunity to appeal any adverse decision as provided by this policy for long-term suspensions.

(d) The Principal or designee shall appoint a Site Committee to hear the appeal. The Site Committee shall consist of not less than three District employees, who shall be a minimum of two teachers assigned to the school site and an administrator or counselor not involved with the suspension of the student. The Site Committee shall designate a chairperson. No administrator or teacher who witnessed the misconduct or any teacher teaching the student during the current semester shall serve on the Site Committee.

(e) The Principal or designee shall schedule the Site Committee hearing as soon as possible during regular school hours, Monday through Friday. Reasonable consideration shall be given to accommodate work schedules of the parent or guardian within that time period, if possible. The Principal shall attempt to schedule the Site Committee meeting within five (5) calendar days of receiving the parent/student's written or e-mail appeal request. The student and parent will be notified in writing, by e-mail, or by phone of the date, time and place of

the hearing. The principal or designee who issued the out-of-school suspension decision shall attend the Site Committee hearing.

(f) The Site Committee will conduct a full investigation of the issues appealed. The principal or designee will outline the student's misconduct; read, refer to, or distribute the policy, rule or regulation which the student's misconduct violated; and make any statements or submit documentary evidence which support the suspension decision. The student or parent will explain the student's position and/or make statements or submit documentary evidence relating to the appealed issues.

(g) Evidence supplied by witnesses shall be submitted to the Site Committee in writing only. For evidence supplied by student witnesses, the Site Committee shall have the authority to restrict the identity of the student witnesses. In this case, the principal or designee will inform the Site Committee of the information received from students and explain why the principal or designee believes the information received is valid and supports the suspension decision.

(h) The Site Committee meeting is closed to the public.

(i) Legal counsel is permitted at the Site Committee hearing.

(j) At the conclusion of the presentation of the evidence, the Site Committee shall retire to render a decision by a majority vote and such decision is final and not appealable. The Site Committee's decision shall be to uphold, modify, or revoke the suspension decision of the Principal or designee as to the guilt or innocence of the student and/or the reasonableness and length of the out-of-school suspension, depending on the issues appealed. The Site Committee's decision shall be in writing and mailed, e-mailed or delivered to the parent, the principal, and the Superintendent. The decision of the Site Committee is final and non-appealable.

Appeal of Long-Term Suspensions:

A parent or the student may appeal the suspension decision for a suspension in excess of ten (10) school days first to a District Review Committee then to the Board as follows:

(a) An appeal must be presented in writing to and received by the school principal within two (2) school business days after the decision of suspension is received by the parent or student and must specify which part of the suspension decision is being appealed. The parent/student may appeal one or both of the following:

1. The finding of guilt of the charge(s) by the principal or designee for which the student was suspended; and/or

2. The reasonableness and length of the suspension.

(b) The suspension decision will become final and nonappealable if a request for appeal is not timely submitted.

(c) The principal will contact the Superintendent and the Superintendent or designee will schedule a District Review Committee to hear the appeal. The District Review Committee will consist of three (3) administrator(s) not involved with the suspension of the student and the Superintendent's designee. No member of the District Review Committee shall have been associated with the case in any manner prior to the appeal hearing. The Superintendent's designee shall serve as the chairperson for all appeals to the District Review Committee.

(d) The chair of the District Review Committee shall notify the student, parents, and school principal of the date, time, and place of the appeal hearing in writing or by e-mail.

(e) The meeting will be electronically recorded and kept on file with the District for two (2) years from the date of the hearing.

(f) The District Review Committee meeting is closed to the public.

(g) Legal counsel is permitted.

(h) The District Review Committee meeting will be held during the regular school hours, Monday through Friday, with reasonable consideration given to accommodate the hours of working parents within this time period, if possible. The District shall attempt to schedule the District Review Committee meeting within five (5) calendar days of receiving the parent/student's written appeal request.

(i) At the meeting, the principal or designee will inform the parent of the policy, rule or regulation the student was found to have violated, outline the student's misconduct, and present any evidence or documents which support the suspension decision. The student and parent will be permitted to explain and present any evidence or documents in support of the specified reasons for the appeal listed in the written notice of appeal requesting the appeal.

(j) Evidence supplied by witnesses shall be submitted to the District Review Committee in writing only. For evidence supplied by student witnesses, the District Review Committee shall have the authority to restrict the identity of the student witnesses. In this case, the principal or designee will inform the District Review Committee of the information received by students and explain why the principal or designee believes the information received is valid and supports the suspension decision.

(k) At the conclusion of the hearing, the District Review Committee will retire to

render a decision by a majority vote as to the specified reasons for which an appeal was requested, including the guilt or innocence of the student if that issue was appealed and determine the reasonableness and length of the suspension imposed if that issue was appealed. The District Review Committee's decision shall be to uphold, modify, or revoke the suspension decision of the principal or designee.

(l) The hearing chair shall mail, e-mail, or deliver a copy of District Committee's decision to the parent/student and site principal. The District Review Committee's written decision shall be mailed to the parent by certified mail, return receipt requested. The parent shall be advised of the right to have the suspension reviewed by the Board as provided by this policy.

(m) An appeal of the decision of the District Review Committee to the Board must be submitted in writing to and received by the Superintendent or designee within five (5) school days after the decision of the District Review Committee is received by the parent or student and must specify the portion of the District Review Committee's decision which is being appealed. The parent/student may appeal one or both of the following:

1) The finding of guilt of the charge(s) by the principal or designee for which the student was suspended; and/or

2) The reasonableness and length of the suspension.

(n) If no appeal is received within the five (5) school days, the decision of the District Review Committee will be final and nonappealable.

(o) Each board member will be provided the evidence and witness statements that were presented to the District Review Committee, an electronic recording of the District Review Committee meeting, and the written statements of the student and administration, if submitted.

(p) Each Board member shall review the information individually.

(q) At the next available Board meeting, an agenda item shall be placed on the agenda to consider and vote on the appeal of the long-term suspension. Board members may vote on the appeal based on their review of the record.

(r) If, at the meeting, the Board wants to discuss the appeal among each other, it must be discussed in open meeting unless the student or parent(s) requests such discussion to be in executive session.

(s) The Board shall render a decision by voting to uphold, modify, or revoke the decision of the District Review Committee.

(t) As soon as possible after the review and/or hearing, the Clerk of the Board shall provide the decision to the parent, student and principal in writing, setting forth the decision of the Board related to upholding, overturning, or modifying the decision of the District Review Committee. The Board's written decision shall be mailed to the parent by certified mail, return receipt requested. **The decision of the Board shall be final.**

Adopted: September 14, 2020
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